

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
August 20, 2026
8:30 AM/1:30 PM

13. SHEENA MORTENSEN V. MICHAEL RUSH

26FL0488

Petitioner filed a Request for Order (RFO) on May 29, 2026, after the court denied her ex parte application for emergency orders. The parties were referred to Child Custody Recommending Counseling (CCRC) with an appointment on July 9, 2026 and a review hearing on August 20, 2026. Upon review of the court file, there is no Proof of Service showing Respondent was properly served.

Respondent filed a Responsive Declaration on May 29, 2026. There is no Proof of Service for this document.

Both parties and the minor appeared and fully participated in the CCRC appointment. A report with agreements of the parties as well as further recommendations was filed with the court on July 28, 2026. Copies were mailed to the parties on July 29, 2026.

Petitioner filed declarations on August 10, 11, and 12, 2026. The declarations were served on August 10th and 12th. Each is excessive in length, 78 pages, 78 pages, 89 pages, 122 pages and contain hearsay. The court has only considered the relevant and admissible portions of the declarations.

The court orders parties to appear for the hearing.

TENTATIVE RULING #13: PARTIES ARE ORDERED TO APPEAR FOR THE HEARING.